

**SUPREME COURT OF NEW YORK
COUNTY OF NEW YORK**

Index No. 2024-054812

ACME CORPORATION,
Plaintiff,

v.
GLOBEX LLC,
Defendant.

MOTION FOR SUMMARY JUDGMENT

Filing Date: April 25, 2024

Plaintiff Acme Corporation, by and through its attorneys, respectfully moves this Court for summary judgment pursuant to CPLR 3212 on the grounds that there are no genuine issues of material fact and Plaintiff is entitled to judgment as a matter of law.

STATEMENT OF FACTS

1. On March 1, 2024, Plaintiff and Defendant entered into a Service Agreement (the 'Agreement') for software development services.
2. Pursuant to Section 1.1, Plaintiff was to deliver software by June 1, 2024.
3. Plaintiff completed delivery on May 28, 2024, ahead of schedule.
4. Defendant has refused to remit the agreed payment of \$150,000.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

- (a) Grant summary judgment in favor of Plaintiff;
- (b) Award damages in the amount of \$150,000 plus interest;
- (c) Award costs and attorneys' fees;
- (d) Grant such other relief as the Court deems just.

Dated: April 25, 2024
New York, New York

Respectfully submitted,
LAW OFFICES OF CHEN & PARK LLP
By: Robert Chen, Esq.
Attorney for Plaintiff